

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 23, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	25CV467969	Krysta Mercurio et al vs Jayden Tran et al	Minor's Compromise Hearing Parties to appear.
<u>LINE 2</u>	25CV482470	Sameh Alshraideh vs Michael Thompson et al	Motion to Withdraw as Attorney Parties to appear.

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9:00 A.M.

Calendar Lines # 1

Case Name Kristin Hoffman vs Kaiser Permanente Division of Research, Vaccine Study Center

Case No. 24CV429115

Motion for a Court Order to Advance a Hearing

I. BACKGROUND

A. BRIEF FACTUAL HISTORY

On January 16, 2024, Plaintiff Kristin Hoffman filed a Complaint against Defendant The Permanente Medical Group, Inc. (“TPMG”)¹ for allegations relating to the vaccination of her son, a minor. (Complaint).

B. RELEVANT PROCEDURAL HISTORY

The defendants filed a motion to compel arbitration and stay the action under Code of Civil Procedure section 1281.4 on March 27, 2025 based on the allegations asserted in the Complaint. That motion was heard on November 6, 2025 in front of the Honorable Shella Deen. After the hearing, on November 6, the Honorable Deen granted the defendants’ motion to compel arbitration and stayed the matter, a formal order was executed on December 3, 2025.

Since that ruling, the matter has been stayed. Arbitration proceedings were initiated and Thomas Denver was assigned as the arbitrator in this matter. (TPMG’s Opposition, p. 2). On March 5, 2026, the parties attended an arbitration management conference before Mr. Denver. (Declaration of Collin W. Wayne, p. 2). The arbitration is scheduled for April 19, 2027. (*Id.*).

Despite the stay, and after the arbitration management conference, the plaintiff filed three separate motions in this matter: (1) “Motion to Move Case Back to State Court After Exhausting Arbitration as a Legal Option” that was filed on April 30, 2026 and the clerk’s office set for hearing on January 14, 2027; (2) this present “Motion Requesting a Judge’s Order to Move Up Hearing Date” that was filed on May 4, 2026, and the clerk’s office set for hearing on June 23, 2026; and (3) “Motion for Summary Judgment in *Civil* Case” that was filed on May 4, 2026 and the clerk’s office set for hearing on August 6, 2026.

The Court carefully reviewed the following: Plaintiff’s “Motion Requesting a Judge’s Order to Move up Hearing Date” and attached Exhibits A-F (totaling 18 pages); Defendant’s Opposition to Plaintiff’s Motion (totaling 4 pages); Declaration of Collin W. Wayne in Support of Defendant’s Opposition and attached Exhibit A (totaling 12 pages); the defendant’s proof of service; and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOLATION

As a preliminary matter, the court notes that the plaintiff’s moving papers was not accompanied by a proof of service to the defendants. Further, the motion did not include a notice of hearing on the motion and memorandum of points and authorities in support of the motion as required by California Rule of Court, rule 3.1112. There were no Declarations attached to the moving order but Exhibits A-F were attached. Plaintiff is hereby admonished for the violation. Any future violations may result in the court’s refusal to consider noncompliant papers.

¹ Defendant TPMG asserts that the plaintiff erroneously named as non-legal entity “Kaiser Permanente Division of Research, Vaccine Study Center, a Division of Kaiser Foundation Hospitals.” (Defendant’s Opposition, p. 1).